

Legal questions for Yosef

NEDIV lev, tzedaka platform for South Africa. Draft for review, 08/10/2026.

We are about to take real donations through a website and phone app. Please tell us what is required, what is optional, and what it will cost to get right. Tick each question when answered and write the answer in the line beneath.

How it works in short: donors give to registered charities; the payment provider settles to the charity and we take a fee; each charity has a dashboard showing its donors and donations; we issue one s18A receipt per donor per tax year on the charity's behalf; sign-in is by emailed link, with an authenticator-app code for charity and platform admins.

1. Our company and money flow

Who we are in law, and whether handling donations puts us under financial rules.

- ☐ Which entity runs the platform (company, NPC or other), and does it need any registration to collect donations for other charities?

Why: Decides who signs contracts, who carries liability and who gets sued.

- ☐ Money goes from the donor through the payment provider straight to the charity, and we take our fee. Does that make us a payment facilitator, or does the provider's licence cover us?

Why: If we touch the money we may need a licence or a registered partner.

- ☐ Are we an accountable institution under FICA, and what checks must we do on charities and large donors?

Why: Affects onboarding, record keeping and reporting of suspicious transactions.

- ☐ Sanctions and terror-financing screening: must we check charities or donors, and how often?

Why: A listed charity receiving money through us is a serious risk.

- ☐ Is any fundraising or NPO registration needed for us or for each charity before we list it?

Why: Decides what proof we ask charities for at sign-up.

2. Section 18A receipts

We issue receipts for the charity, under a signed mandate, once a year per donor.

- ☐ Can a platform issue s18A receipts on a charity's behalf, and what must the mandate say?

Why: Our receipts only work if SARS accepts them as the charity's receipts.

- ☐ Exactly what must be on a s18A receipt? Check our layout against the rules (charity name and address, PBO number, date, donor name, amount, nature of the donation).

- ☐ Is one annual receipt per donor acceptable, or must a receipt be issued when each donation is made?

Why: We currently issue after the tax year ends.

- ☐ Should the donor's ID or tax number print on the receipt? We store the numbers but show only the last 4 digits to charities.

Why: Open question already raised with you.

- ☐ The receipt shows the donation only, not our processing fee. Is that correct, and is the fee ever part of the deductible amount?

- ☐ How long must receipts and the records behind them be kept, and by whom (us, the charity, or both)?

- ☐ How do we correct or withdraw a receipt that was wrong? (We currently void it and issue a new one.)

- ☐ Do non-resident or company donors have different s18A rules we must handle?

3. POPIA and donor privacy

We hold names, contact details, addresses, tax numbers and giving history.

- ☐ Are we the responsible party, an operator, or both, and what is each charity? Who needs an information officer, and must they register with the Information Regulator?

- ☐ Giving choices (maaser, chomesh, general tzedaka) can reveal religious belief. Is that special personal information, and what consent or justification do we need? Today only the donor can see it.

- ☐ Charities see donor name, contact and address, and can download them as a CSV. What notice must donors see at checkout, and is consent needed?

- ☐ Anonymous donors are anonymous on public pages only; the charity still sees their details for receipts. Is that lawful and how should we word it at checkout?

- ☐ Direct marketing: may we or a charity email donors after a donation, and what opt-out is required?

- ☐ Our data sits with Supabase, our email provider and the payment provider, possibly outside South Africa. What do we need for cross-border transfers (contracts, notices)?

- ☐ How long may we keep donor data, and how do we handle requests to see or delete it, given the tax record rules?

- ☐ What must we do, and how fast, if donor data is leaked? Who do we tell?

4. Terms, charity agreement and consumer rules

- ☐ Terms of use and privacy policy for the website and the app: can you draft or review?

- ☐ Charity agreement: our fee, settlement, suspension, charge-backs, false statements by a charity, and who is liable if a charity misuses funds.
.....
- ☐ Electronic Communications Act requirements for a website that sells or collects money: what must we publish (company details, contact, complaints)?
.....
- ☐ Consumer Protection Act: does it apply to donations, and is there any cooling-off or refund right for donors?
.....
- ☐ Refund and charge-back policy: when do we refund, who bears the loss and the payment provider's fee on a charge-back?
.....
- ☐ Recurring donations: what do we need for card or debit authority (donor consent, notice before a charge, easy cancellation)?
.....
- ☐ Dedications and messages are public text. Who is liable for defamatory or abusive content, and what moderation must we do?
.....

5. Fees, VAT and tax on our side

Rand figures live in the platform settings and are not repeated here.

- ☐ Must we register for VAT, and is our fee subject to VAT at 15%? Is the fee shown to donors inclusive or exclusive?
.....
- ☐ How is our fee income taxed, and does handling donations for charities affect our own tax position?
.....
- ☐ Is it acceptable to ask the donor to cover the processing fee on top of the donation, and how must it be disclosed?
.....

6. App stores and wallets

- ☐ Apple and Google rules on donations inside an app (approved non-profits, Apple Pay, or paying in the browser): what must we do before release?
.....
- ☐ Apple Pay and Google Pay: any extra terms with our payment provider or the wallets?
.....
- ☐ Do we need a developer account in the company's name, and who owns the app listing?
.....

7. For your Rabbi, not Yosef

- ☐ May the processing fee be paid from maaser, or must it come from other money?
.....
- ☐ The app tracks maaser and chomesh separately from general tzedaka. Any ruling we should reflect in the wording?
.....

Nothing here is legal advice from us. Fee rates and the payment provider's rate sheet will follow separately.